



Maritime &
Coastguard
Agency

Guidance

MIN 732 (M+F) Amendment 3 guidance for shipowners, fishing vessel owners, seafarers and fishers affected by the conflict in the Middle East

Updated 31 July 2026

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Summary

The UK remains committed to safeguarding the rights and welfare of all seafarers and fishers working on UK flagged vessels. Under UK legislation implementing the Maritime Labour Convention, 2006 (MLC), seafarers are entitled to repatriation when their Seafarer Employment Agreement (“SEA”) expires, after a maximum of 11 months of continuous service on board their ship or when a ship is bound for a war zone which they have chosen not to enter.

Under UK legislation implementing the Work in Fishing Convention, 2007 (ILO 188), fishers are entitled to repatriation when their Fisherman’s Work Agreement (“FWA”) expires, after a maximum of 12 months of continuous service on board or if a fishing vessel is bound for a war zone which they have chosen not to enter.

The evolving situation in the Middle East may create challenges for repatriation to certain destinations. While recognising these exceptional circumstances, the UK, as a Flag State that has ratified the MLC and ILO 188, will continue to uphold strong protections for seafarers’ and fishers’ living and working conditions.

To support shipowners/fishing vessel owners and seafarers/fishers during this period, this notice sets out clear, practical guidance and requests shipowners/fishing vessel owners to notify the MCA where seafarers/fishers remain on board beyond the maximum period. Our goal is to help ensure seafarers and fishers are kept safe, well-informed, and

able to return home as soon as conditions allow to ensure safe and efficient repatriations.

See section 4, on how to seek support with additional guidance on welfare support for seafarers and fishers along with the latest travel and safety advice from the Foreign, Commonwealth & Development Office (FCDO).

Amendment 3 updates the expiry date of the notice only.

This MIN expires 30 September 2026.

1. Introduction/background

1.1 Seafarers/fishers have a right to be repatriated:

- when their SEA/FWA expires
- when their SEA/FWA is terminated by the shipowner/fishing vessel owner
- when their SEA/FWA is terminated by the seafarer/fisher in accordance with the terms of their SEA/FWA
- when the maximum period of continuous service is reached, which is 11 months for seafarers or 12 months for fishers
- where the SEA/FWA is terminated pursuant to an order of a court or tribunal
- when the seafarer/fisher is no longer able to carry out their duties under their SEA/FWA or cannot be expected to carry them out in the specific circumstances

The specific circumstances mentioned in the last bullet point above include the following:

- where the seafarer/fisher has an illness, injury or other medical condition which requires their repatriation when found medically fit to travel
- where the seafarer/fisher has been shipwrecked
- where the shipowner/fishing vessel owner is not able to fulfil their legal or contractual obligations towards the seafarer/fisher by reason of insolvency, sale of the ship or a change in the vessel's registration
- where the vessel is bound for a war zone to which the seafarer/fisher does not consent to go. In this context, for UK registered ships, what

constitutes a “war zone” may be defined in the seafarer’s SEA or fisher’s FWA or by the Warlike Operations Area Committee (WOAC).

1.2 Under UK legislation a seafarer means “any person, including a master, who is employed or engaged or works in any capacity on board a ship and whose normal place of work is on a ship”.

1.3 Under UK legislation a fisherman means “a person, including the skipper, employed, engaged or working in any capacity on board any fishing vessel, but does not include a person solely engaged as a pilot for the vessel”.

1.4 The International Bargaining Forum Warlike Operations Area Committee (IBF WOAC) comprised of the International Transport Workers’ Federation (ITF) and the Joint Negotiating Group (JNG) has agreed to designate the Strait of Hormuz, Gulf of Oman and Persian Gulf as a Warlike Operations Area, reflecting the continuing and heightened threat to seafarers and vessels operating in the region.

1.5 The UK’s Warlike Operations Area Committee (UK WOAC), comprising of the UK Chamber of Shipping, Nautilus International and the UK’s Rail Maritime and Transport Workers (RMTW) union has also designated the area as a Warlike Operations Area (WOA).

1.6 The IBF WOAC and UK WOAC are two separate voluntary agreements and contain different terms and conditions – please seek advice from the relevant unions for more information.

1.7 Any seafarer/fisher, regardless of any IBF WOAC or UK WOAC agreement in place, shall have the right not to proceed to a war zone in which event they shall be repatriated to their country of residence, or other mutually agreed location, at the shipowner/fishing vessel owner’s expense which should not have any detriment to their future employment and career prospects.

1.8 Operators of any vessel within the designated area should use their best endeavours to enable any of their seafarers/fishers who wish to leave the ship to do so at an appropriate port from which they can be repatriated as soon as is reasonably practicable.

2. Extension of Seafarer Employment Agreements/Fisherman’s Work Agreements

2.1 The MCA encourages shipowners/fishing vessel owners and seafarers/fishers to work together constructively to ensure safe and efficient repatriations.

2.2 In these circumstances, where requested by seafarers/fishers working on board UK flagged vessels, a new or extended SEA/FWA should be agreed and issued. Where a collective bargaining agreement (CBA) is in place, the seafarers'/fishers' representatives should be consulted. The MCA does not need to be notified, up to a total period on board of 11 months for seafarers or 12 months for fishers. The seafarer's/fisher's entitlement to repatriation will not lapse if an extension is given.

2.3 If a seafarer wishes to remain on board for more than 11 months, or fisher wishes to remain on board for more than 12 months, the MCA must be notified, and a letter of approval will be sent to show Port State control that the Flag State has agreed to the extension under the current circumstances. A seafarer's/fisher's entitlement to repatriation will not lapse if an extension is given.

2.4 To obtain a letter of approval for an extension of an SEA/FWA, which would increase the continuous service on board beyond 11 months for seafarers or 12 months for fishers, please email mlc@mcga.gov.uk for SEA extensions or workinfishing.convention@mcga.gov.uk for FWA extensions.

The following information should be included:

- seafarer/fisher rank
- company name
- vessel name
- date of joining
- date of contract end
- date of proposed repatriation
- reason for extension

The MCA will issue an email letter to acknowledge the extension for Port State control purposes.

2.5 The situation should be kept under review and the shipowner/fishing vessel owner needs to ensure that the seafarers/fishers are allowed to return home at the first available opportunity even if this is part way through an extension to their SEA/FWA.

Evidence should be retained by both the seafarer/fisher and the shipowner/fishing vessel owner including an entry in the official log book clearly demonstrating the reason why the seafarer/fisher was asked to extend their contract.

2.6 Where seafarers/fishers remain on board for longer than their contracted period of service, shipowners/fishing vessel owners and seafarers/fishers should consider the following:

- extended periods working on board without leave are likely to give rise to greater risk of fatigue, and increased risk to welfare particularly if anticipated leave is deferred at short notice.
- guidance on recognising the signs of fatigue can be found in MGN 505 (M) Amendment 1: Human element guidance - Part 1: Fatigue and fitness (<https://www.gov.uk/government/publications/mgn-505-human-element-guidance-fatigue-and-fitness-for-duty>). The master/skipper and all seafarers/fishers should monitor and be alert for such signs, reporting any concerns to the master/skipper, the on-board safety committee and trade union representatives, if appropriate.
- consideration should be given to rearranging work patterns to allow for additional rest periods/shore leave where possible, and to providing increased connectivity to allow seafarers/fishers to contact home, contact trade union representatives and to access online entertainment on board.
- the seafarer's/fisher's informed consent should be obtained in any case where the shipowner/fishing vessel owner is advising/requesting a seafarer/fisher to stay on board.
- if repatriation is not possible through scheduled ports of call, consideration should be given to diverting the ship to a port where it is possible.
- shipowners/fishing vessel owners should consider whether it is safe to continue operating where there are signs of fatigue or a significant or sustained deterioration in the wellbeing of crew members.

3. Changes to repatriation destination

3.1 Shipowners/fishing vessel owners and seafarers/fishers may mutually agree to repatriation to an alternative location, for example, if a seafarer's/fisher's family has temporarily relocated. Such flexibility can support wellbeing and help ensure timely return home.

4. How to seek support

4.1 If there are concerns or issues surrounding entitlement to repatriation, extension of contract or crew welfare please contact the MCA on mlc@mcga.gov.uk or for out of office hours, in an urgent situation please contact safemanning@mcga.gov.uk which is monitored 24/7.

4.2 The MCA is committed to supporting the wellbeing of seafarers and fishers, and recognising the vital role played by their friends and family in supporting them. Ensuring that both those at sea and their families can quickly access trusted welfare information is therefore an important part of safeguarding seafarers, retired seafarers and cadets. See [MIN 734 \(M+F\) Welfare support for seafarers and fishers](#) (<https://www.gov.uk/government/publications/min-734-mf-welfare-support-for-seafarers-and-fishers>) and contact: humanelement@mcga.gov.uk for further advice.

4.3 The MCA encourages all seafarers to review the [latest travel and safety advice from the Foreign, Commonwealth & Development Office \(FCDO\)](#). (<https://www.gov.uk/government/news/foreign-office-travel-advice-updates>)

4.4 Operators of UK and REG flagged vessels to which the MLC and/or ISPS Code do not apply should, as far as reasonably practicable, follow the advice in this notice as well as any advice issued by FCDO, United Kingdom Maritime Trade Operations (UKMTO) and the Joint Maritime Information Centre (JMIC).

4.5 The Department for Transport's Maritime Security Division issues security guidance to UK and Red Ensign Group (REG) flagged ships regulated under the International Ship and Port Facility Security (ISPS) Code through Company Security Officers and Overseas Territory/Crown Dependency registries. Shipowners and ship operators should follow this advice and refer to the UKMTO Centre and the JMIC advisory notes for situational awareness. DfT's Transport Security Operations Centre (TSOC) is contactable 24/7 on +44 (0)207 944 3111.

More information

Maritime and Coastguard Agency
Bay 2/17
Spring Place
105 Commercial Road
Southampton
SO15 1EG

Safety and Health Enquiries 0203 817 2000

Email: mlc@mcga.gov.uk

Website: www.gov.uk/mca (<https://www.gov.uk/mca>)

Please note that all addresses and telephone numbers are correct at time of publishing.



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